

24STCV02870 24STCV02870

County: los-angeles

Division: Civil Law and Motion

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 11, 2026

CASE NUMBER

24STCV02870

MOTIONS

Motions to Compel Discovery Responses

MOVING PARTY

Plaintiff Yilip International Co., Ltd.

OPPOSING PARTY

None

MOTIONS

Plaintiff

Yilip International Co., Ltd. ("Plaintiff") moves to compel responses from Defendants Brian Kim ("Kim") and the Choice Produce, Inc. ("Choice Produce, collectively, "Defendants") to Form Interrogatories, set two ("FROG"), Special Interrogatories, set two ("SROG"), and Requests for Production, set two ("RPD"). Plaintiff also moves to deem admitted matters specified in Requests for Admissions, set two ("RFA").

ANALYSIS

In its March 11, 2026 order, the Court granted the motion for withdrawal of Defendants' former counsel. Therefore, as Choice Produce is an entity, it cannot appear in this action except through counsel. (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1145; Gamet v. Blanchard (2001) 91 Cal. App. 4th 1276, 1284.) The Court has provided Choice Produce with the opportunity to retain new counsel but, as of yet Choice Produce has not done so. Accordingly, at the hearing of this matter, the Court will continue the motions for hearing as to Choice Produce. The Court will also schedule an order to show cause why the Court should not strike Choice Produce's answer to the operative complaint filed on April 4, 2024 on the same date. If Choice Produce retains counsel prior to that hearing, the Court will consider the motions. If the Court strikes Choice Produce's answer, Plaintiff must proceed against Choice Produce in default.

Plaintiff served

the written discovery on Kim on March 30, 2026 by mail. Kim's responses were thus due by May 4, 2026. As of the filing date of these motions, Plaintiff has not received responses from Kim. Accordingly, the motions to compel responses to the FROG, SROG, and RPD are granted pursuant to Code of Civil Procedure sections 2030.290 and 2031.300. Kim is ordered to serve responses to Plaintiff's discovery requests without objections within 30 days of service of this order.

Plaintiff also

moves to deem admitted the matters specified in the RFA. When a party fails to respond to requests for admissions, the propounding party may move for an order the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction. (Code of Civ. Proc., § 2033.280, subd. (b).) The Court "shall" grant a motion to deem

admitted the matters specified in the requests for admissions, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code of Civ. Proc., § 2033.280, subd. (c).) As Kim has not responded to the RFA, the Court grants the motion to deem admitted matters specified in the RFA.

Plaintiff seeks

sanctions in connection with the motion. The Court concludes Kim's failure to timely respond to the discovery constitutes an abuse of the discovery process and awards sanctions. The Court imposes sanctions against Kim in the amount of \$1,290, which represents four hours of attorney time to prepare the motions and attend the hearing at \$350 per hour, plus four filing fees.

CONCLUSION AND ORDER

Plaintiff's

motions to compel Kim's responses to the FROG, SROG, and RPD are granted pursuant to Code of Civil Procedure sections 2030.290 and 2031.300. Kim is ordered to serve verified responses, without objections, within 30 days of notice of this order.

Kim is deemed to

have admitted matters specified in the RFA.

Kim is to pay

sanctions in the amount of \$1,290 to Plaintiff, by and through counsel, within 30 days of notice of this order.

Plaintiff is

ordered to provide notice of the Court's ruling and to file proof of service of same.